

1. **23CV01364 Dickson, Amber Bowen et al. v. Amber Grove Place, LLC et al.**

EVENT: Case Management Conference

The Court will conduct a hearing and hear from counsel re: status of settlement.

2. **23CV01923 Greenberg, Stuart et al v. Jacques, Michael et al**

EVENT: Plaintiff's Demurrer and Motion to Strike Portions of Defendants Michal Jacques' and Alpha Omega Services Inc.'s Cross-Complaint and First Amended Cross Complaint (Continued from 5/27/26)

DEMURRER

Was Michael Jacques Required to Obtain Leave of Court to File the Cross Complaint?

CCP 428.50. Time for filing cross-complaint; Leave of court to file cross-complaint

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

Preliminarily, neither side has cited a case, nor has the Court found a case addressing whether leave to file a cross complaint is required when the underlying Complaint (or in this instance First Amended Complaint) has been amended but is unchanged as it pertains to the cross-complainant. With that in mind, the Court finds leave of court was not required. The plain language of the statute allows the filing of a cross-complaint without leave under subdivision (a) if it is filed contemporaneously with the answer. Thus, even if the Second Amended Complaint did not alter the allegations or legal theories with